

Rakesh Kumar Nishad v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 28 August 2023 · 2023:AHC-LKO:57603-DB · Writ-C No. 3018 of 2022 · **Disposed; application to be considered on clause 4.4 or Annexure 4.2 documents.**

HEADNOTE

New-connection applicant who had filed neither clause 4.4 ownership documents nor an Annexure 4.2 indemnity bond undertook to file either within two weeks. The Chief Executive Engineer was directed to consider the application within two weeks of that filing. The writ was disposed without a direction to grant the connection.

FACTUAL SUMMARY

Rakesh Kumar Nishad sought a new electricity connection from Electricity Distribution Division-I, Faizabad/Ayodhya. The connection was not released, and he filed Writ-C No. 3018 of 2022 in the Lucknow Bench against the State and the distribution licensee. The Power Corporation told the Court that he had given neither ownership documents under clause 4.4 of the U.P. Electricity Supply Code, 2005 nor an indemnity bond under Annexure 4.2. On 26 May 2022 the petition was adjourned for instructions. At the final hearing he undertook to file those papers.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

ownership documents for a new connection

HOLDING

A licensee may require ownership documents under clause 4.4 before a new connection is processed. Where the applicant undertakes to file them within two weeks, the Chief Executive Engineer is to consider the application within two weeks thereafter, and the writ court does not itself direct that the connection be granted. ¶ 3-5

HOLDING-UNIT · UP-2005::Annexure 4.2

indemnity bond as an alternative document

HOLDING

An indemnity bond in Annexure 4.2 is an accepted alternative to clause 4.4 ownership documents. If the applicant files that bond within two weeks, the Chief Executive Engineer must consider the new-connection application within two weeks of filing. ¶ 3-5

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The petitioner agreed to file either ownership documents under clause 4.4 or an Annexure 4.2 indemnity bond within two weeks. The writ was disposed by directing the Chief Executive Engineer to consider the new-connection application within two weeks of that filing, without deciding that the connection must be granted. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO RELEASE OF THE CONNECTION

The Court directed only that the application be considered after clause 4.4 or Annexure 4.2 documents are filed, and did not decide ownership, occupancy, or the merits of the application. ¶ 5

